

Council Meeting
June 12, 2019
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The Claremont City Council held a meeting on Wednesday, June 12, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski – arrived at 6:40pm
Ward II Councilor Scott Pope

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

Members of the Council absent were:

At-Large Councilor Jeremy Zullo

AGENDA CHANGES

Mayor Lovett said item 10. G should be called “Consideration to Accept Donations,” not “Motion to Accept Donations.”

Mayor Lovett said under Consultation with Legal Counsel, there will be a non-meeting to discuss land.

REPORT OF THE SECRETARY

None

MAYOR’S NOTES

Proclamation – Peter Companion

Mayor Lovett presented Peter Companion with a proclamation for his 37 ½ years of service to the Department of Public Works, as he is retiring on June 28th.

Proclamation – Norman LeBlanc

Mayor Lovett presented Norman LeBlanc with a proclamation for his service of 7 years to the City of Claremont.

Proclamation – Ivy Condon

Mayor Lovett presented Ivy Condon with a proclamation as she was named one of the twelve Vital Communities Heroes and Leaders for 2019.

Proclamation – Claremont Pride Day

Mayor Lovett presented Matt Mooshian, Chair of Rural Outright, with a proclamation recognizing Claremont Pride Day on June 15th. Events will be held Saturday in Barnes Park.

Letter of Appreciation – Margaret “Peg” Watson

City Manager John Maclean presented Peg Watson with a letter of appreciation for her help covering the City Manager’s office when the Executive Assistant was out on medical leave for a few months.

Mayor Lovett read a public notice stating that the Police Department is seeking re-accreditation from CALEA (Commission on Accreditation for Law Enforcement Agencies). The public was invited to an information session on June 18th, 7:00 p.m., Claremont Savings Bank Community Center.

Mayor Lovett’s notes:

- Extended a thank you to the American Legion, VFW, and Rolling Thunder for their work organizing the Memorial Day Parade
- Thanked the Stevens High School (SHS) Alumni Association, SHS classes, businesses, and organizations for a successful Alumni Weekend
- Thanked the public for attending the Claremont Planning Board meeting where the proposed Construction & Demolition Transfer site on Industrial Boulevard was discussed

CITY MANAGER’S REPORT

Health Trust

Mr. Maclean explained that the Clerical Union and Merit Plan employees were switched to NHIT/Harvard Pilgrim two years ago and because the other unions did not switch, the cost savings were not obtained by the City. The City would like to switch the Clerical Union and Merit Plan employees back to HealthTrust beginning January 1, 2020. Due to some questions by Councilors, he is not asking for any action on this tonight and he will report back with further information.

Merit Plan

Mr. Maclean stated there is money in the budget this year to make adjustments to the Merit Plan employees' salaries.

Sludge Hauling Options

Victor St. Pierre, Public Works Director, said regarding the composting at the plant, they have not been able to get the ash needed since the biomass plants shut down back in April. They are testing with sawdust instead, but it takes 15 days to process. They are looking at other options (i.e. a Canadian outfit, a dehydrating process).

Director Merrill noted that on June 24th the Safe Route to School Project will begin.

APPOINTMENT TO BOARDS AND COMMITTEES

Claremont Community Television Inc. (CCTV) Board of Directors

A motion was made by Mr. Damren and seconded by Mr. Pope to re-appoint Ronald J. Landry to seat 3 of the Claremont Community Television Inc. (CCTV) Board of Directors.

Voice vote: motion carried 8-0.

Airport Advisory Board

A motion was made by Mr. O'Hearne and seconded by Mr. Stone to re-appoint Dale Girard to seat 1 of the Airport Advisory Board.

Voice vote: motion carried 8-0.

Parks and Recreation Commission

A motion was made by Ms. Kier and seconded by Mr. Damren to re-appoint Leonard Boulanger to seat 3-At Large of the Parks and Recreation Commission.

Voice vote: motion carried 8-0.

CITIZEN'S FORUM

None

OLD BUSINESS

Southwestern Community Services Transportation

Keith Thibault, Chief Development Officer; Terri Page, Transit Manager; and Beth Daniels, Chief Operating Officer, were present to speak to the Council.

City Manager John Maclean explained that Southwestern Community Services (SCS) provides the bus service for the community and they have asked for a \$5,000 increase in the funding provided by the City. It was put on the supplemental budget list. Last year's budgeted amount was \$25,000,

Mr. Thibault said that SCS has passed the 2 ½ year mark of operating the bus service and it is on solid footing. Financially, it is still a struggle as there are not a lot of Federal funds available. The \$5,000 will be for a match to help out with short-term/immediate changes to improve the bus service.

Mr. Thibault said there is a pending Northern Borders grant that will be used for signage, etc.

Food Truck Policy – Ordinance 567 – Second Reading – Public Hearing

The purpose of this ordinance is to provide for the regulation of sales by food truck vendors within the city. This is necessary to ensure the free flow of motor vehicle and pedestrian traffic and to promote the public health, safety and welfare, while providing the opportunity for food truck vendors to operate within the city.

Mayor Lovett gave an overview of how we got to this point with the Food Truck Policy.

Mayor Lovett received a letter from a citizen requesting that the entire ordinance be read into the record.

Ordinance #567 Food Truck Policy was read into the record.

A motion was made by Mr. Koloski and seconded by Mr. Damren to adopt Ordinance 567 Food Truck Policy.

There was discussion both for and against the requirement of state criminal background checks needed for owners/operators operating in residential areas and/or school zones.

Mayor Lovett opened the Public Hearing

Cody Raymond, Ward 1 resident and co-owner of Farro Deli, stated her concern is the designated spaces in the Historic District on Broad Street. She said there are eight eating establishments within a block of that area and they pay a lot of money to maintain their "brick

and mortar” businesses. She would like the Council to consider putting those designated spots on North Street.

Mayor Lovett closed the Public Hearing

Voice vote: motion carried 6-2 (Mr. Koloski and Mr. Pope opposed).

City Manager Update on Encroachment on Rail Trail (from 3/13 meeting)

Mark Brislin, Parks and Recreation Director, stated the Parks & Recreation Department has had the Rail Trail under their jurisdiction for about a year; previously it was under the Conservation Commission. This is a two-mile trail that goes from Pleasant Street to past Home Depot, with a portion of it along Washington Street. He gave a presentation showing the short-term and long-term ideas. He has worked closely with the affected property owners.

- Short Term Improvements to Rail Trail on Section Along Washington Street
 - Project to be done on approximately 1,500 feet of the Rail Trail from the bridge to VIP Auto
 - Add gates to prevent motorized vehicles from entering
 - Add new hard pack to define trail from local business parking areas
 - Add guard rail between trail and Washington Street
- Long Term Improvements/Relocation of Rail Trail on Section Along Washington Street
 - New trail would run behind businesses on Washington Street from the railroad bridge and would connect back to the existing Rail Trail near VIP Auto
 - This trail would run along a portion of the bank of the Sugar River
 - In exchange for the property along the river, the business owners would receive the property in front of their business

Mr. Michael Hurd, owner of Maurice Auto, said he is willing to work with the City to get this resolved. He feels moving the trail to behind the businesses would be a benefit for all.

Mr. Scott Reed, owner of SG Reed, said he does not have as much traffic going in and out of his property as he used to. He is also in favor of the suggested solutions and is very willing to work with the City.

Mr. Scott Hinkley, owns the parcel between Maurice Auto and O'Reilly Auto Parts, and is also in favor.

Mr. Jeff Coburn, Chairman of Parks & Recreation Commission, said the Commission wants to work with the affected businesses.

A motion was made by Mr. Koloski and seconded by Ms. Kier to authorize the City Manager, or his designees, to take such actions as may be necessary to apply to the State of New Hampshire Recreational Trails Program grant for an 80/20 matching grant for improvements on the Rail Trail along Washington Street, from the railroad bridge to VIP

Auto, with the City's 20% to come from the Rail Trail line item in the Parks and Recreation budget, in-kind labor and donations.

Voice vote: motion carried 8-0.

Update on City Manager Search Committee

Mr. Damren said that 56 applications have been received. The City Manager Search Committee has pulled aside 13 applications to review further. The Committee has settled upon phone interview questions. The Council will be interviewing top candidates about the second week of July. If all goes well, the estimated start date for the new manager will be the of middle of August. Our current contract with MRI (Municipal Resources Inc. and Mr. MacLean) expires at the end of June.

A motion was made by Mr. Damren and seconded by Mr. Stone to extend the present contract with Municipal Resources, Inc. for the services of John MacLean as Interim City Manager up to and including July 26, 2019, provided that present existing terms, conditions, and amounts apply to this extension.

Voice vote: motion carried 8-0.

NEW BUSINESS

Art Work at Skate Park

Mr. Brislin said about a month ago he was approached by a group of avid skateboarders to add some artwork to the ramps at the Riverside Park Skatepark. Melissa Richmond from the West Claremont Center for Music and the Arts and Ernie Perry, Art Teacher at Fall Mountain Regional High School, will work with the Parks and Recreation Department on this. They will do this on one of the elements (the half pipe).

Mr. Brislin said no action is required by the Council, but he wanted to notify the Council as it is a City property.

Resolution 2020 – 1 Tax Anticipation Note – Public Hearing

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, pursuant to the Municipal Finance Act, that the City Treasurer, with the approval of the City Manager, is hereby authorized to issue and sell notes of the City of Claremont, in an amount not to exceed \$1,000,000.00 in anticipation of receipt of taxes for the fiscal year 2019.

Such amount will not exceed the total tax levy for the year 2019. *(Majority Vote Required)*

A motion was made by Ms. Kier and seconded by Mr. Stone to adopt Resolution 2020 – 1 Tax Anticipation Note.

Public hearing opened. No one spoke. Public hearing closed.

Voice vote: motion carried 8-0

Mayor Lovett said there was a press conference this afternoon and Senators Feltes and Hennessey announced that if the current State Budget is approved, Claremont will receive over \$333,000 each year in the upcoming biennium from the state to be spent on infrastructure projects.

Resolution 2020 – 2 Adopt the 2020 General Fund Budget – Public Hearing

WHEREAS in accordance with the Charter of the City of Claremont, and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 12, 2019;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it adopts the following for its proposed expenditures and revenues for all departments for its 2020 fiscal year as follows. *(Majority Vote Required)*

2020 GENERAL FUND

Expenditure Summary:

Policy and Administration

Policy	\$ 644,897
City Administration	876,517
Elections & Registrations	13,683
Assessing	355,485
Municipal Complex	398,158
Planning & Development	916,355
General Services	1,012,029

Public Safety

Communications – 911	\$ 539,891
Police Department	2,902,537
Fire Department	2,416,317

Health & Welfare

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Welfare Department	\$ 369,765
Public Works	
Sanitation	\$ 192,219
Streets & Roads	2,959,495
Library	394,322
Debt Service	\$ 1,170,476
Public Service Enterprises	
Cemetery	\$ 188,761
Airport	112,954
Recreation & Parks	
Parks	\$ 402,503
CSB-Recreation	1,105,954
Outside Agency	\$ 25,000
TOTAL	\$16,997,318

Revenue Summary:

Taxes	\$ 17,050
Interest on Taxes	375,000
State of New Hampshire	1,057,500
Licenses/Permits/Fees	2,199,420
Departmental Revenue	1,093,637
Rent of City Property	72,616
Payments in Lieu of Taxes	98,683
Miscellaneous Revenue	123,220
From Fund Balance	342,590
From Capital Reserve	73,500
Used to Reduce Tax Rate	500,000
REVENUE TOTAL	\$ 5,953,216

A motion was made by Mr. Damren and seconded by Mr. Pope to adopt Resolution 2020 – 2 Adopt the 2020 General Fund Budget.

A motion was made by Mr. Stone and seconded by Mr. O’Hearne to table this.

Mr. Stone said was just made aware that the actual expenditures he had asked for were in the packet, but he hadn’t had time to look at them, and with the internet glitch tonight, he is unable to retrieve the information. He would like to review that information before voting on this budget.

Mr. MacLean suggested rather than tabling this that the Council to still work on this and just not vote tonight.

Roll call vote to table:

Lessard - yes

O’Hearne - yes

Stone - yes

Damren - no

Kier - yes

Koloski - no

Pope - no

Lovett - no

Motion fails 4-4.

Mr. Koloski stated that he is still against the removal of the hydrant rental fee.

Mr. MacLean discussed the hydrant rental fee of \$161,000 asking if that is a proportional fee. In his budget letter to the Council, Mr. MacLean proposed to use the funds to replace three pieces of fire apparatus: Fire Chief’s vehicle, Engine 1 and Engine 2, all of which have been on the fleet replacement list for several years having reached the optimum life expectancy for each vehicle.

Mr. Koloski referenced other communities’ hydrant districts.

Regarding hydrant rentals, Fire Chief Bryan Burr said that Newport does not charge a fee for its hydrants; Keene does not charge for hydrants; Franklin does not charge for hydrants, but is working on a fee schedule for private hydrants; Lebanon does not charge the Fire Department for hydrants, but does charge for private hydrants (\$180 per hydrant). The auditors were just with Lebanon and they felt the amount Claremont charges is extremely high and should be in the range of \$25,000-\$30,000.

Mr. Maclean gave an update on the Opera House roof. Melanson has reviewed for temporary and long-term projects. We are waiting for quotes.

A discussion continued.

Mr. Damren retracted his motion.

A motion was made by Mr. Stone and seconded by Ms. Kier to move items 10C. Resolution 2020 – 2 Adopt the 2020 General Fund Budget – Public Hearing, D. Resolution 2020 – 3 Adopt the 2020 Water Division Budget – Public Hearing, E. Resolution 2020 – 4 Adopt the 2020 Sewer Division Budget – Public Hearing, and F. Resolution 2019 – 25 Encumbrances – Public Hearing to the June 19, 2019, Council meeting.

Voice vote: motion carried 8-0.

Resolution 2020 – 3 Adopt the 2020 Water Division Budget – Public Hearing

WHEREAS in accordance with the Charter of the City of Claremont and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 13, 2018 to provide oral and written comments on said proposed appropriations and revenues; and

WHEREAS the City of Claremont Water and Sewer Divisions are operated as separate entities and by revenues derived from their individual enterprises;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby adopts the following for its proposed expenditures and revenues for the Water Division as follows. *(Majority Vote Required)*

2020 PROPOSED WATER DIVISION BUDGET

REVENUE

Water Revenue	\$1,913,723
Miscellaneous Revenue	18,000
From Retained Earnings/Fund Balance	0

TOTAL	\$1,931,723
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EXPENSE

Water Department	\$1,931,723
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TOTAL	\$1,931,723
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Moved to June 19th meeting.

Resolution 2020 – 4 Adopt the 2020 Sewer Division Budget – Public Hearing

WHEREAS in accordance with the Charter of the City of Claremont and the Statutes of the State of New Hampshire, the City Council is required to establish a budget for its appropriations and revenues for its municipal activities; and

WHEREAS in accordance with said Charter, a public hearing was held on June 12, 2019 to provide oral and written comments on said proposed appropriations and revenues; and

WHEREAS the City of Claremont Water and Sewer Divisions are operated as separate entities and by revenues derived from their individual enterprises;

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, that it hereby adopts the following for its proposed expenditures and revenues for the Sewer Division as follows. *(Majority Vote Required)*

2020 PROPOSED SEWER DIVISION BUDGET

REVENUE

Sewer Revenue	\$2,426,517
Miscellaneous Revenue	308,976
From Retained Earnings/Fund Balance	124,061

TOTAL	\$2,859,554
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EXPENSE

Sewer Department	\$2,859,554
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TOTAL	\$2,859,554
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Moved to June 19th meeting.

Resolution 2019 – 25 Encumbrances – Public Hearing

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, that it hereby adopts the following for the 2019 encumbrances: *(Majority vote required)*

Dept #	Department - General Description	Amount	Detailed Description
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416	Planning & Development	\$ 3,000	Re-Encumber for the replacement of dead trees in the city center (is on hold awaiting decision on larger Pleasant St. Revitalization project).
421	Police	\$ 24,930	Re-Encumber for the Remodel and upgrades to booking room and cell area. Done minimal work as of year-end.
421	Police - Re-encumber from FY2018 & FY 19- recruiting bonus	\$ 30,000	Re-Encumber Recruiting Bonus: Spent \$17,200 in FY 18 for 3 hires and none in FY19. Would like to continue carrying over funds in hopes of attracting qualified candidates.
441	Streets & Road - City Culverts	\$ 19,742	Re-Encumber for Bible Hill delays/overruns
415	Maintenance	\$ 111,742	Encumber 2019 funds for flat roof repairs
415	Maintenance	\$ 17,000	Encumber to Replace flooring in Council Chambers, hallway and 3 entryways, bids being evaluated now
416	Planning & Development	\$ 12,000	Recent Amendments in the final design of East St. increased costs.
481	Parks & Recreation	\$ 500	Applying for a grant and this would be our 20% match.
TIFD	Parking Garage	\$ 18,000	RFQ proposal done and currently the contract is being negotiated but is not completed yet.

**Total Request to Encumber
into FY 2019**

**\$
236,914**

To use the General Fund monies already raised on the tax rate for projects that were not able to be completed in the current Fiscal year.

Moved to June 19th meeting.

Consideration to Accept Donations

On the agenda, this is called Motion to Accept Donations. At the beginning of the meeting, Mayor Lovett said this should be called Consideration to Accept Donations.

A motion was made by Ms. Kier and seconded by Mr. Koloski to accept with sincere appreciation a donation of 12 Smoke Alarms and 12 Smoke Alarms with Carbon Monoxide Detection, valued at \$975.00 from Kidde Residential & Commercial. These alarms will assist the fire department in its efforts to provide owner occupied residential and 2 family homes with lifesaving and co alarms to those who are unable to afford and/or install smoke alarms in their homes. 90% of the building fires since 2018 had no working alarms.

Voice vote: motion carried 8-0

A motion was made by Ms. Kier and seconded by Mr. Stone to accept with sincere appreciation a donation of an antique fire extinguisher valued at \$100.00 from Bill & Linda Kennedy in thanks for the exceptional service and friendliness of the fire department staff.

Voice vote: motion carried 8-0

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Koloski asked if the Policy Committee could look at the dollar amount of donations required to come before the Council.

Mayor Lovett said she received a resignation letter from Councilor Zullo effective today, June 12, 2019. She read the letter into the record. She further stated that means per the Charter they must have a replacement by the second regularly scheduled Council meeting after the vacancy has occurred.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:59 p.m., a motion was made by Ms. Kier and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Gwendolyn R. Melcher
City Clerk